

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JONATHAN WOHL,

Index No.:

Plaintiff,

-against-

NEW YORK CITY, NEW YORK CITY POLICE DEPARTMENT, NEW YORK CITY POLICE OFFICER SHAUN ENRIGHT, in his individual and official capacities, NEW YORK CITY POLICE OFFICER ARISLEYDA TAVERANUNEZ, in her individual and official capacities, NEW YORK CITY POLICE SERGEANT WILLIAM J. JOHNSON, in his individual and official capacities, NEW YORK CITY POLICE OFFICER MICHAEL PECK, in his individual and official capacities, NEW YORK CITY POLICE SERGEANT CHO, in his individual and official capacities, NEW YORK CITY POLICE OFFICER ADELSON ESPINAL, in his individual and official capacities, NEW YORK CITY POLICE OFFICER NAZIR NAZARY, in his individual and official capacities, NEW YORK CITY POLICE SERGEANT DANNY BERMEJO, in his individual and official capacities, NEW YORK CITY POLICE OFFICER JOHN DOES #1-10 (fictitiously named), in their individual and official capacities, and NEW YORK CITY POLICE OFFICER JOHN DOES #11-20 (fictitiously named), in their individual and official capacities,

**VERIFIED
COMPLAINT**

Defendants.

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Plaintiff JONATHAN WOHL, by his attorneys, The Russell Friedman Law Group, LLP, complaining of Defendants NEW YORK CITY, NEW YORK CITY POLICE DEPARTMENT, NEW YORK CITY POLICE OFFICER SHAUN ENRIGHT, in his individual and official capacities, NEW YORK CITY POLICE OFFICER ARISLEYDA TAVERANUNEZ, in her individual and official capacities, NEW YORK CITY POLICE SERGEANT WILLIAM J. JOHNSON, in his individual and official capacities, NEW YORK CITY POLICE OFFICER MICHAEL PECK, in his individual and official capacities, NEW YORK CITY POLICE

SERGEANT CHO, in his individual and official capacities, NEW YORK CITY POLICE OFFICER ADELSON ESPINAL, in his individual and official capacities, NEW YORK CITY POLICE OFFICER NAZIR NAZARY, in his individual and official capacities, NEW YORK CITY POLICE SERGEANT DANNY BERMEO, in his individual and official capacities, NEW YORK CITY POLICE OFFICER JOHN DOES #1-10 (fictitiously named), in their individual and official capacities, and NEW YORK CITY POLICE OFFICER JOHN DOES #11-20 (fictitiously named), in their individual and official capacities, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiff, JONATHAN WOHL (hereinafter, “WOHL” and/or “Plaintiff”) seeks relief from NEW YORK CITY, NEW YORK CITY POLICE DEPARTMENT, NEW YORK CITY POLICE OFFICER SHAUN ENRIGHT, in his individual and official capacities, NEW YORK CITY POLICE OFFICER ARISLEYDA TAVERANUNEZ, in her individual and official capacities, NEW YORK CITY POLICE SERGEANT WILLIAM J. JOHNSON, in his individual and official capacities, NEW YORK CITY POLICE OFFICER MICHAEL PECK, in his individual and official capacities, NEW YORK CITY POLICE SERGEANT CHO, in his individual and official capacities, NEW YORK CITY POLICE OFFICER ADELSON ESPINAL, in his individual and official capacities, NEW YORK CITY POLICE OFFICER NAZIR NAZARY, in his individual and official capacities, NEW YORK CITY POLICE SERGEANT DANNY BERMEO, in his individual and official capacities, NEW YORK CITY POLICE OFFICER JOHN DOES #1-10 (fictitiously named), in their individual and official capacities, and NEW YORK CITY POLICE OFFICER JOHN DOES #11-20 (fictitiously named), in their individual and official capacities (hereinafter, collectively “Defendants”), for committing acts under color of law and depriving Plaintiff of rights secured under 42 USC § 1983

grounded in rights secured to him under the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the Constitution of the United States.

2. Plaintiff alleges that Defendants engaged in unlawful conduct. Specifically, Defendants falsely arrested and maliciously prosecuted Plaintiff. Further, Defendants, during the course of Plaintiff's pre-trial detention at Midtown South Precinct, subjected Plaintiff to ridicule, harassment, assault, unlawful detention, and inhumane conditions causing physical and emotional harm and extreme pain and suffering in violation of Plaintiff's Constitutional rights and New York State laws. All acts were committed under the color of law and deprived Plaintiff of rights secured to him under the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments of the Constitution of the United States.

3. Defendants, without justification or any reason except an intent to deprive Plaintiff of his rights and knowledge that their conduct had the tacit authorization of Defendant NEW YORK CITY, deprived Plaintiff of his rights under the Constitution of the United States and New York laws.

4. Plaintiff seeks damages, both compensatory and punitive, award of costs, interest, attorney's fees, and such other and further relief as this Court deems just and equitable.

JURISDICTION AND VENUE

5. This Court has jurisdiction as the causes of action alleged herein arose in the City and County of New York, State of New York.

6. Pursuant to CPLR § 503, venue is proper in this Court as the substantial part of the events and/or omissions giving rise to Plaintiff's claims occurred in the County of New York, State of New York.

THE PARTIES

7. Plaintiff is a resident of the United States who lives within the state of New Jersey.

8. Plaintiff identifies as a Black American.

9. Upon information and belief, at all relevant times described herein, Defendant NEW YORK CITY (hereinafter, "CITY") was and continues to be a municipal corporation organized and existing by virtue of the laws of the State of New York.

10. Upon information and belief, at all relevant times described herein, Defendant CITY, by its agents and/or employees, operated, maintained, and controlled Defendant NEW YORK CITY POLICE DEPARTMENT (hereinafter, "NYPD"), including all police officers and sergeants thereof.

11. Upon information and belief, at all relevant times described herein, Defendant NYPD is a subdivision and/or agency of Defendant CITY and has an office at 1 Police Plaza, New York, New York 10038.

12. Upon information and belief, at all relevant times described herein, Defendant NEW YORK CITY POLICE OFFICER SHAUN ENRIGHT (hereinafter, "ENRIGHT") is a Police Officer who is being sued in his individual and official capacities and is an employee of Defendants CITY and NYPD. At all relevant times described herein, Defendant ENRIGHT was acting under color of state law within the scope of his employment as a Police Officer employed by Defendants CITY and NYPD, and works under the supervision, direction, and/or control of his supervisors in NYPD.

13. Upon information and belief, at all relevant times described herein, Defendant NEW YORK CITY POLICE OFFICER ARISLEYDA TAVERANUNEZ (hereinafter, "TAVERANUNEZ") is a Police Officer who is being sued in her individual and official capacities

and is an employee of Defendants CITY and NYPD. At all relevant times described herein, Defendant TAVERANUNEZ was acting under color of state law within the scope of her employment as a Police Officer employed by Defendants CITY and NYPD, and works under the supervision, direction, and/or control of her supervisors in NYPD.

14. Upon information and belief, at all relevant times described herein, Defendant NEW YORK CITY POLICE SERGEANT WILLIAM J. JOHNSON (hereinafter, "JOHNSON") is a Police Sergeant who is being sued in his individual and official capacities and is an employee of Defendants CITY and NYPD. At all relevant times described herein, Defendant JOHNSON was acting under color of state law within the scope of his employment as a Police Sergeant employed by Defendants CITY and NYPD, and works under the supervision, direction, and/or control of his supervisors in NYPD.

15. Upon information and belief, at all relevant times described herein, Defendant NEW YORK CITY POLICE OFFICER MICHAEL PECK (hereinafter, "PECK") is a Police Officer who is being sued in his individual and official capacities and is an employee of Defendants CITY and NYPD. At all relevant times described herein, Defendant PECK was acting under color of state law within the scope of his employment as a Police Officer employed by Defendants CITY and NYPD, and works under the supervision, direction, and/or control of his supervisors in NYPD.

16. Upon information and belief, and at all relevant times described herein, Defendant NEW YORK CITY POLICE SERGEANT CHO (hereinafter, "CHO"), is a Police Sergeant who is being sued in his individual and official capacities and is an employee of Defendants CITY and NYPD. At all relevant times described herein, Defendant CHO was acting under color of state law within the scope of his employment as a Police Sergeant employed by Defendants CITY and NYPD, and works under the supervision, direction, and/or control of his supervisors in NYPD.

17. Upon information and belief, at all relevant times described herein, Defendant NEW YORK CITY POLICE OFFICER ADELSON ESPINAL (hereinafter, "ESPINAL") is a Police Officer who is being sued in his individual and official capacities and is an employee of Defendants CITY and NYPD. At all relevant times described herein, Defendant ESPINAL was acting under color of state law within the scope of his employment as a Police Officer employed by Defendants CITY and NYPD, and works under the supervision, direction, and/or control of his supervisors in NYPD.

18. Upon information and belief, at all relevant times described herein, Defendant NEW YORK CITY POLICE OFFICER NAZIR NAZARY (hereinafter, "NAZARY") is a Police Officer who is being sued in his individual and official capacities and is an employee of Defendants CITY and NYPD. At all relevant times described herein, Defendant NAZARY was acting under color of state law within the scope of his employment as a Police Officer employed by Defendants CITY and NYPD, and works under the supervision, direction, and/or control of his supervisors in NYPD.

19. Upon information and belief, at all relevant times described herein, Defendant NEW YORK CITY POLICE SERGEANT DANNY BERMEJO (hereinafter, "BERMEJO") is a Police Sergeant who is being sued in his individual and official capacities and is an employee of Defendants CITY and NYPD. At all relevant times described herein, Defendant BERMEJO was acting under color of state law within the scope of his employment as a Police Sergeant employed by Defendants CITY and NYPD, and works under the supervision, direction, and/or control of his supervisors in NYPD.

20. Upon information and belief, at all relevant times described herein, Defendant NEW YORK CITY POLICE OFFICER JOHN DOES #1-10 (fictitiously named) (hereinafter,

“DOES #1-10”) are individuals and employees of Defendants CITY and NYPD with an actual place of employment within New York City, State of New York, who are being sued in their individual and official capacities. At all relevant times described herein, DOES #1-10 were acting under color of state law within the scope of their employment as Police Officers employed by Defendants CITY and NYPD, and work under the supervision, direction, and/or control of their supervisors in the NYPD.

21. Upon information and belief, at all relevant times described herein, Defendant NEW YORK CITY POLICE OFFICER JOHN DOES #11-20 (fictitiously named) (hereinafter, “DOES #11-20”) are individuals and employees of Defendants CITY and NYPD with an actual place of employment within New York City, State of New York, who are being sued in their individual and official capacities. At all relevant times described herein, DOES #11-20 were acting under color of state law within the scope of their employment as Police Officers employed by Defendants CITY and NYPD, and work under the supervision, direction, and/or control of their supervisors in the NYPD.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

September 9, 2022 Arrest

22. Plaintiff served a Notice of Claim upon Defendant CITY within ninety days of the events giving rise to his claims.

23. On March 8, 2023, Plaintiff appeared for an examination pursuant to § 50-h of the New York General Municipal Law.

24. More than thirty days have elapsed since Plaintiff served his Notice of Claim and Defendant CITY has not offered adjustment or payment thereof.

October 3, 2022 Arrest

25. Plaintiff served a Notice of Claim upon Defendant CITY within ninety days of the events giving rise to his claims.

26. On August 28, 2023, Plaintiff appeared for an examination pursuant to § 50-h of the New York General Municipal Law.

27. More than thirty days have elapsed since Plaintiff served his Notice of Claim and Defendant CITY has not offered adjustment or payment thereof.

FACTUAL ALLEGATIONS

28. At all times herein, Plaintiff was a dues paying member of Laborers' Local 79 (hereinafter, "Local 79"), whose office is located at 131 W. 33rd Street, 7th Floor, New York, NY 10001 (hereinafter, "Union Hall").

September 9, 2022 Arrest

29. On or about September 9, 2022, at approximately 9:45 AM, Plaintiff personally appeared and was lawfully present at the Union Hall where he intended to inquire about employment and speak with an employee regarding the status of an investigation of a racial incident in which Plaintiff was a victim at a prior job site.

30. Plaintiff had, on prior occasions, attempted to file a complaint with Local 79 regarding the aforementioned racial incident, to which Local 79 never provided further information despite repeatedly informing Plaintiff that the incident would be investigated.

31. On or about September 9, 2022, on or before 11 AM, Plaintiff audio recorded the interactions with Local 79 and its personnel at the Union Hall with his cellular phone.

32. On or about September 9, 2022, at some point on information, Local 79 and/or a representative of Local 79 called the police to have Plaintiff arrested.

33. Plaintiff was conducting lawful business at the Union Hall and was neither causing a disturbance nor harassing any individual.

34. On or about September 9, 2022, Defendants ENRIGHT, TAVERANUNEZ, and JOHNSON arrived at the Union Hall, and without conducting any investigation, summarily arrested Plaintiff despite the fact that Plaintiff was lawfully present at the Union Hall for official business.

35. On or about September 9, 2022, Defendants ENRIGHT, TAVERANUNEZ, and JOHNSON took custody of Plaintiff's work helmet, water bottle, and calendar, all of which contain the phrase "Black Lives Matter" (hereinafter, "BLM"), a reference to Plaintiff's political beliefs, and Plaintiff's cellular phone, which was still recording audio at the time of his arrest.

36. Defendants falsely claimed that Plaintiff was trespassing at the Union Hall despite the fact that he was lawfully present and conducting official union business.

37. Plaintiff was thereafter handcuffed without explanation and removed from the Union Hall in front of other union members and employees, and then taken to Defendant NYPD's 14th Precinct, Midtown South (hereinafter, the "Precinct"), located at 357 W. 35th Street, New York, NY 10001, for processing.

38. Defendant ENRIGHT assured Plaintiff while enroute to the Precinct that if Plaintiff did not have a criminal history, then Plaintiff will be allowed to leave the Precinct within two hours with only a desk appearance ticket.

39. Plaintiff arrived and was processed at the Precinct and, upon information, walked by Defendants PECK and/or DOES #1-10, who were at a nearby desk, as he was escorted to a holding cell.

40. Plaintiff was charged with Criminal Trespass in the Third Degree in violation of PL § 140.10(a), a misdemeanor.

41. The conditions of the holding cell were abhorrent. There was filth everywhere, there was overflowing garbage in the holding cell's only toilet, the seat of the toilet was lined with dried feces, and there were no other facilities that could be used in the holding cell Plaintiff was in.

42. The conditions of the holding cell described herein caused Plaintiff to become very anxious and he began to have panic attacks, which led to Plaintiff having chest pain as a result.

43. Plaintiff called for assistance for approximately 45 minutes, but his requests were repeatedly ignored despite Defendants' PECK and/or DOES #1-10 presence at a desk near the holding cell Plaintiff was confined in. Ultimately, Defendant PECK answered Plaintiff's call for assistance.

44. Plaintiff advised Defendant PECK of his chest pain. Plaintiff further requested water. In response, Defendant PECK walked away without responding to Plaintiff, returned approximately 15-20 minutes later and provided Plaintiff a dirty cup of undrinkable water. Plaintiff then requested a bottle of water from Defendant PECK upon noticing the filthy condition of the cup and water he received.

45. Defendant PECK returned to Plaintiff after another 15-20 minutes with the bottle of water, however, the bottle had already been opened and tampered with before being provided to Plaintiff.

46. Plaintiff also informed Defendant PECK of the filthy condition of the holding cell's toilet, to which Defendant PECK responded, in sum and substance, that Plaintiff should "squat" and that Defendant PECK was not "running a cleaning company".

47. Plaintiff additionally requested a complaint form from Defendant PECK to which Defendant PECK informed Plaintiff that a shift change was upcoming and that he would let his Sergeant know of Plaintiff's request.

48. Several hours later, Defendant CHO walked by the holding cell Plaintiff was confined in. Plaintiff again requested a complaint form. Defendant CHO simply stared at Plaintiff and walked away.

49. Some several hours thereafter, Defendant ENRIGHT returned and informed Plaintiff that he was going to be issued a desk appearance ticket and released with his belongings, including his cellular phone. Plaintiff again asked for a complaint form from Defendant ENRIGHT. However, Defendant ENRIGHT rushed Plaintiff out of the Precinct without providing a complaint form.

50. Plaintiff was finally released by Defendants on or about 8:30 PM on September 9, 2022.

51. The next day, Plaintiff realized that his phone had inadvertently been left recording for hours while he was in police custody, and was shocked at the filthy and racially derogatory remarks made by Defendants ENRIGHT, TAVERANUNEZ, JOHNSON, PECK, CHO, and/or DOES #1-10 in connection with Plaintiff, e.g.:

- a. "[I]f this was back in the day, they'd take [Plaintiff] out back and shoot [Plaintiff]";
- b. "[Defendant ENRIGHT] should put this arrest on his fridge at home";
- c. "I love watching the world burn";

- d. Plaintiff had not “been in trouble in a while, [Plaintiff] might leave with a desk appearance ticket, but [Defendant ENRIGHT] was going to look into [Plaintiff’s] history to see if there’s an exception to that”;
- e. Possibly charging Plaintiff with “a hate crime”;
- f. “Maybe 18 hours in that cage will change [Plaintiff’s] mind” about BLM;
- g. “Those kind of people they hate police, nothing will ever be their fault”; and
- h. Defendant DOE #1-10 advising Defendant ENRIGHT to “burn some time”, to which Defendant ENRIGHT responded, “[d]on’t worry, I’m going to make my money”.

52. Defendants had no evidence to substantiate the charges. Nonetheless, Plaintiff was charged and his prosecution was continued with malice and solely because of his race and to punish Plaintiff for his political views.

53. It is evident in listening to the recording that Defendants were trying to manufacture additional charges in order to keep Plaintiff incarcerated, all due to his political beliefs and his race.

54. On or about September 29, 2022, Plaintiff received a letter from the District Attorney, County of New York (hereinafter, “DA”), informing him of the DA’s decision not to prosecute Plaintiff’s PL 140.10(a) charge.

55. At all relevant times to the instant Complaint, Defendants were acting under color of law.

56. At all relevant times to the instant Complaint, Defendants, separately and in concert, engaged in acts or omissions which constituted deprivation of the Constitutional rights, privileges, and immunities of Plaintiff and, while these acts were carried out under color of law, they had no justification or excuse in law and were instead gratuitous, illegal, improper, and

unrelated to any activity in which law enforcement officers may appropriately and legally engage in the course of protecting persons and property ensuring civil order.

57. At all relevant times to the instant Complaint, each Defendant had the power and duty to restrain the other Defendants and prevent them from violating the law and the rights of Plaintiff, but each of the Defendants failed and refused to restrain the other Defendants and thereby became a party to unlawfully subjecting Plaintiff to harm and denial of basic rights.

58. That the injuries Plaintiff suffered were caused solely by the conduct of Defendants and Plaintiff in no way contributed to or caused the injuries he suffered.

59. The conduct of Defendants was the proximate cause of Plaintiff's injuries.

60. The injuries suffered by Plaintiff are permanent in nature.

October 3, 2022 Arrest

61. On or about October 3, 2022, at or around 11:00 AM, Plaintiff personally appeared and was lawfully present at the Union Hall where he intended to speak with an employee.

62. On or about October 3, 2022, Defendants ESPINAL, NAZARY, BERMEO, and DOES #11-20, on information from Defendant NYPD's 14th Precinct Midtown South, were again called to the Union Hall to arrest Plaintiff.

63. Defendants ESPINAL, NAZARY, BERMEO, DOES #11-20 arrived at the Union Hall and, without conducting any investigation, summarily arrested Plaintiff despite the fact that Plaintiff was lawfully present at the Union Hall conducting lawful union business.

64. At all relevant times, Plaintiff did not resist and/or in any way threaten Defendants ESPINAL, NAZARY, BERMEO, and/or DOES #11-20.

65. At all relevant times, Plaintiff did not display any weapons nor threaten use of a weapon.

66. At all relevant times, Plaintiff did not use or exhibit any force whatsoever towards Defendants ESPINAL, NAZARY, BERMEO, and DOES #11-20.

67. Defendants ESPINAL, NAZARY, BERMEO, and DOES #11-20, in effectuating Plaintiff's arrest, did use unlawful force and did assault and batter Plaintiff.

68. As a result of Defendant ESPINAL, NAZARY, BERMEO, and DOES #11-20's use of unlawful force, Plaintiff was caused to suffer extremely severe pain and discomfort.

69. Defendants ESPINAL, NAZARY, BERMEO, and DOES # 11-20 subsequently transported Plaintiff to the Precinct where he was processed and charged with Criminal Trespass in the Third Degree in violation of PL § 140.10 (0A), Disorderly Conduct in violation of NY PL § 240.20 (06), and Harassment in the Second Degree in violation of NY PL § 240.26 (03).

70. Defendants had no evidence to substantiate the charges.

71. Plaintiff was arraigned on October 4, 2022 for the above-mentioned charges.

72. On information, Plaintiff had to appear in court on multiple occasions.

73. The prosecution of Plaintiff was continued after probable cause was vitiated. Defendants had irrefutable evidence of Plaintiff's innocence. Plaintiff was charged with Criminal Trespass in the Third Degree in violation of PL § 140.10 (0A), Disorderly Conduct in violation of NY PL § 240.20 (06), and Harassment in the Second Degree in violation of NY PL § 240.26 (03), despite knowledge that such prosecution was unlawful and in violation of Plaintiff's rights.

74. On or about January 11, 2023, Plaintiff received a Certificate of Disposition from the New York Criminal Court dismissing all of Plaintiff's charges in connection with his October 3, 2022 arrest.

75. At all relevant times to the instant Complaint, Defendants were acting under color of law.

76. At all relevant times to the instant Complaint, Defendants, separately and in concert, engaged in acts or omissions which constituted deprivation of the Constitutional rights, privileges, and immunities of Plaintiff and, while these acts were carried out under color of law, they had no justification or excuse in law and were instead gratuitous, illegal, improper, and unrelated to any activity in which law enforcement officers may appropriately and legally engage in the course of protecting persons and property ensuring civil order.

77. At all relevant times to the instant Complaint, each Defendant had the power and duty to restrain the other Defendants and prevent them from violating the law and the rights of Plaintiff, but each of the Defendants failed and refused to restrain the other Defendants and thereby became a party to unlawfully subjecting Plaintiff to harm and denial of basic rights.

78. That the injuries Plaintiff suffered were caused solely by the conduct of Defendants and Plaintiff in no way contributed to or caused the injuries he suffered.

79. The conduct of Defendants was the proximate cause of Plaintiff's injuries.

80. The injuries suffered by Plaintiff are permanent in nature.

AS AND FOR A FIRST COUNT
42 U.S.C. § 1981 –Racial Profiling and Racial Discrimination
(Against All Defendants)

81. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously with the same force and effect as if more fully set forth at length herein.

82. Defendants, acting under the color of state law, both collectively and individually, have engaged in actions and abuses which have deprived Plaintiff of his rights, privileges, and immunities secured by the United States Constitution, including but not limited to, rights secured by the Fourth, Fifth, and Fourteenth Amendments and other laws in violation of 42 U.S.C. § 1983.

83. Plaintiff was arrested and prosecuted not because he had committed any crime, but because Plaintiff was profiled and arrested on account of being a Black American and due to his political views.

84. This is a clear violation of Plaintiff's due process rights protected by the Fourth, Fifth, and Fourteenth Amendments.

85. As a direct consequence of the actions of Defendants, Plaintiff suffered loss of standing in the community, loss of time, loss of freedom, loss of quality of life, and loss of regular income, damage to name and reputation, special damages, incidental fees/costs, and other financial impairments.

86. That, by reason of the foregoing, Plaintiff suffered and continues to suffer irreparable injury and monetary damages, in excess of ONE MILLION DOLLARS (\$1,000,000.00), plus punitive damages, costs, and attorneys' fees pursuant to Title 42 § 1988.

AS AND FOR A SECOND COUNT
42 U.S.C. § 1983 – False Arrest
(Against Defendant Officers)

87. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

88. That, the aforesaid arrest and imprisonment of Plaintiff by Defendants ENRIGHT, TAVERANUNEZ, JOHNSON, PECK, CHO, ESPINAL, NAZARY, BERMEO, DOES #1-10, and DOES #11-20 (hereinafter, collectively "Officers") was under the color of State Law, without any reasonable cause or belief that Plaintiff was in fact guilty of the crimes for which he was charged.

89. That Defendant Officers, their agents, servants, and employees falsely arrested and illegally imprisoned Plaintiff, and intentionally subjected Plaintiff to confinement which Plaintiff was conscious of, and said confinement was not otherwise privileged or consented to by Plaintiff.

90. That, by reason of the aforesaid unlawful arrest and imprisonment, caused willfully and maliciously by Defendant Officers, their agents, servants, or employees, Plaintiff was wrongfully deprived of his rights and privileges and benefits as provided to him under the Constitution of the United States of America, was subjected to pain and suffering, great indignities, ridicule, scorn, loss of freedom, humiliation, mental distress, was prevented from attending his usual activities, was injured in his reputation in the community, and was further caused to incur monetary expense, including legal fees.

91. That the aforesaid false arrests and subsequent imprisonments of Plaintiff violated the Fourth Amendment of the United States Constitution.

92. That Defendant Officers committed the foregoing acts willfully and with malicious disregard for Plaintiff's rights and are, therefore, liable to Plaintiff for compensatory as well as punitive damages.

93. As a proximate result of Defendants' intentional and malicious actions, Plaintiff was greatly humiliated, injured in his reputation, caused to incur attorney's fees, associated legal expenses, and other special damages, and has suffered great mental anguish causing damages, all to Plaintiff's damage, in an amount to be determined at trial but not less than ONE MILLION DOLLARS (\$1,000,000.00), plus punitive damages, costs, and attorneys' fees pursuant to Title 42 § 1988.

AS AND FOR A THIRD COUNT
42 U.S.C. § 1983 – Malicious Prosecution
(Against Defendant Officers)

94. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

95. That Defendant Officers instituted and continued the criminal proceedings against Plaintiff in the absence of any probable cause and/or evidence for said prosecution.

96. That the prosecution against Plaintiff was with malice.

97. That the dismissal against Plaintiff was a favorable termination in favor of Plaintiff.

98. That said malicious prosecution of Plaintiff by Defendant Officers constitutes a deprivation of Plaintiff's Fourth Amendment Constitutional right.

99. As a proximate result of Defendant Officers' intentional and malicious actions, Plaintiff was greatly humiliated, injured in his reputation, caused to incur attorney's fees, associated legal expenses, and other special damages, and has suffered great mental anguish causing damages, all to Plaintiff's damage, in an amount to be determined at trial but not less than ONE MILLION DOLLARS (\$1,000,000.00), plus punitive damages, costs, and attorneys' fees pursuant to Title 42 § 1988.

AS AND FOR A FOURTH COUNT
42 U.S.C. § 1983 – Failure to Intervene
(Against All Defendants)

100. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

101. On or about September 9, 2022 and October 3, 2022, Plaintiff was subjected to false arrest and unlawful search and seizure of Plaintiff's person at the hands of Defendants.

102. Despite Defendants having irrefutable evidence of Plaintiff's innocence, Defendants nonetheless arrested Plaintiff.

103. Each of the Defendants knew and/or deliberately ignored the fact that the false accusations, detainment, false arrest, and illegal seizure violated the rights guaranteed to Plaintiff under the Fourth and Fourteenth Amendments of the U.S. Constitution and 42 U.S.C. § 1983.

104. Each of the said Defendants had the authority, ability, and concurrent duty under 42 U.S.C. § 1983 to prevent the false arrest, wrongful detainment, and illegal search of Plaintiff, yet neglected to prevent said violations from occurring and, further, failed to intervene to protect or aid Plaintiff when such violations did, in fact, occur.

105. Specifically, each and every one of the Defendants had the opportunity and responsibility to prevent the wrongful detainment and abuse of process against Plaintiff because each Defendant had actual notice of the wrongful actions of the other Defendants at the scene of the incident.

106. Defendants had the power to prevent the continued due process violations against Plaintiff yet failed to prevent or dismiss the unlawful charges against Plaintiff, or to protect Plaintiff from the unwarranted penalties that followed from the charges against him.

107. As a direct consequence of the actions of Defendants acting in furtherance of their duties as agents of their respective municipalities and agencies, Plaintiff suffered injuries, including but not limited to, stigmatizations, embarrassment, loss of liberty, and the infringement of his rights guaranteed to him under the U.S. Constitution.

108. As a direct consequence of the actions of Defendants, Plaintiff suffered loss of standing in the community, loss of time, loss of freedom, loss of quality of life, damage to his name and reputation, special damages, attorney's fees, incidental fees/costs, and other financial impairments.

109. That, by reason of the foregoing, Plaintiff suffered and continues to suffer irreparable injury and monetary damages, was greatly humiliated, injured in his reputation, caused to incur attorney's fees, associated legal expenses, and other special damages, and has suffered great mental anguish causing damages, all to Plaintiff's damage, in an amount to be determined at trial but not less than ONE MILLION DOLLARS (\$1,000,000.00), plus punitive damages, costs, and attorneys' fees pursuant to Title 42 § 1988.

AS AND FOR A FIFTH COUNT
42 U.S.C. § 1983 – Abuse of Process
(Against All Defendants)

110. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously with the same force and effect as if more fully set forth at length herein.

111. Defendants subjected Plaintiff to unlawful search and seizure without just cause or reason. Defendants abused the criminal process in falsely arresting and unlawfully and falsely searching Plaintiff, to satisfy their personal goals of covering up their wrongdoing and to further their own purposes of exercising their privilege for their own warped sense of power.

112. Defendants lacked reasonable suspicion to stop and detain Plaintiff and, further, lacked any probable cause to arrest and prosecute Plaintiff.

113. Defendants created false and fabricated bases and statements for the purposes of unlawfully arresting Plaintiff solely due to his race and his political views.

114. Defendants' use of process for the aforementioned improper purpose amounted to an abuse of said process, which was initiated and used to the detriment of Plaintiff solely for a purpose that was/is outside the legitimate ends of the legal process. The purpose behind Defendants' actions was to protect Defendants' illegal conduct and to harass, intimidate, coerce, silence, and punish Plaintiff.

115. Defendants did not initiate the detainment, seizure, arrest, and prosecution of Plaintiff as a result of actual knowledge that a crime was committed. Defendants' clear intention was to cover up their unlawful conduct and to intimidate Plaintiff and cause harm to Plaintiff without proper motive, excuse, or justification of any kind.

116. As a direct consequence of the actions of Defendants, acting in furtherance of their duty as agents of Defendant CITY, Plaintiff suffered injuries, including but not limited to, stigmatization, embarrassment, loss of liberty, and the infringement of his rights guaranteed to him under the U.S. Constitution.

117. Defendant Officers, with the aid of other named Defendants, falsified evidence and committed perjury in order to cover up the fact that Defendants acted unlawfully.

118. As a direct consequence of the actions of Defendants, Plaintiff suffered loss of standing in the community, loss of time, loss of freedom, loss of quality of life, and loss of regular income, damage to name and reputation, special damages, incidental fees/costs, and other financial impairments.

119. That by reason of the foregoing, Plaintiff suffered and continues to suffer irreparable injury and monetary damages, in excess of ONE MILLION DOLLARS (\$1,000,000.00), plus punitive damages, costs, and attorneys' fees pursuant to Title 42 § 1988.

AS AND FOR A SIXTH COUNT
42 U.S.C. § 1983 - Excessive Force
(Against Defendants ESPINAL, NAZARY, BERMEO, and DOES #11-20)

120. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

121. Plaintiff was brutalized by Defendants ESPINAL, NAZARY, BERMEO, and DOES #11-20 in the absence of any need for such application of force.

122. Defendants ESPINAL, NAZARY, BERMEO, and DOES #11-20 subjected Plaintiff to excessive force while acting in the scope of their employment as Police Officers. Such force was objectively unreasonable under the circumstances then existing and caused Plaintiff to suffer serious and permanent physical injuries.

123. Plaintiff has suffered significant and substantial damages as a result of all of the aforementioned conduct of Defendants.

124. As a proximate result of Defendants ESPINAL, NAZARY, BERMEO, and DOES #11-20's actions, Plaintiff was physically injured, disabled, permanently scarred, caused to be greatly humiliated, injured in his person and reputation, caused to incur attorneys' fees, medical expenses, associated legal expenses, and other special damages, and has suffered great pain and mental anguish, all to Plaintiff's damage in a sum to be provided at trial but not less than ONE MILLION DOLLARS (\$1,000,000.00), plus punitive damages, costs, and attorney's fees pursuant to Title 42 § 1988.

AS AND FOR A SEVENTH COUNT
42 U.S.C. § 1983 – Fabricating of Evidence
(Against Defendant Officers)

125. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

126. Defendant Officers fabricated evidence against Plaintiff to deprive Plaintiff of his First, Fourth, Fifth, and Fourteenth Amendment rights, and jointly caused such deprivation of rights by acting in concert to unlawfully charge Plaintiff with crimes that he did not commit.

127. Defendant Officers further deprived Plaintiff of his due process rights, specifically by falsifying facts in the charging instrument filed against Plaintiff.

128. All of the above factual allegations prepared by Defendant Officers were false. These false allegations, and others, led to the false arrest of Plaintiff, Plaintiff being accused of crimes which he did not commit, and Plaintiff's false prosecution.

129. The actions by Defendant Officers denied Plaintiff his liberty and due process rights. These rights are guaranteed to Plaintiff under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and 42 U.S.C. § 1983.

130. As a direct consequence of the actions of Defendant Officers, Plaintiff suffered loss of standing in the community, loss of time, loss of freedom, loss of quality of life, and loss of regular income, damage to his name and reputation, special damages, attorney's fees, incidental fees/costs, loss of property, and other financial impairments.

131. Defendant Officers knew or should have known that the wrongful detainment, false arrest, wrongful imprisonment, and unlawful prosecution of Plaintiff violated Plaintiff's rights,

guaranteed to him under the Fourth, Fifth, Sixth, and Fourteenth Amendments and 42 U.S.C. § 1983.

132. Defendant Officers had the authority, ability, and concurrent duty under 42 U.S.C. § 1983 to prevent the false arrest, wrongful detainment, and unlawful prosecution of Plaintiff, yet these Defendants neglected to prevent said violations from occurring and, further, failed to intervene to protect or aid Plaintiff when such violations did in fact occur.

133. Defendant Officers knew or should have known that the fabricated accusations against Plaintiff were violative of his Fourth, Fifth, and Fourteenth Amendment rights to due process, and were tantamount to the unfair treatment that he suffered at the hands of each and every Defendant, in violation of Plaintiff's fundamental rights under the U.S. Constitution.

134. As a direct consequence of the actions of the Defendant Officers, Plaintiff suffered loss of standing in the community, loss of time, loss of freedom, loss of quality of life, and loss of regular income, damage to his name and reputation, special damages, attorney's fees, incidental fees/costs, loss of property, and other financial impairments.

135. That by reason of the foregoing, Plaintiff suffered and continues to suffer irreparable injury and monetary damages, in excess of ONE MILLION DOLLARS (\$1,000,000.00), plus punitive damages, costs, attorneys' fees pursuant to Title 42 § 1988.

AS AND FOR AN EIGHTH COUNT
42 U.S.C. § 1983 – *Monell*
(Against Defendant CITY)

136. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

137. Defendant CITY failed to adequately train its police officers regarding the proper use of force, probable cause, and investigation to comply with Constitutional standards and has tolerated the use of excessive force, probable cause, and investigation by its police officers despite a plethora of complaints from citizens of being subjected to Constitutional violations by police officers.

138. Among the other conduct or failure to act by Defendant CITY which caused Plaintiff's injuries are the following:

(a) Failure to retrain and update training of their police officers regarding the proper use of force, probable cause, and investigation of purported crimes under the Constitution of the United States, including police officers who have been accused of excessive use of force, improper police procedures and tactics, and falsifying police records.

(b) In hiring and retaining incompetent police officers who Defendant CITY knew or should have known possessed aggressive propensities, lack of proper temperament, and inability to comprehend or abide by Constitutional principles.

(c) In failing to establish and implement meaningful procedures for disciplining or re-training officers who have engaged in such misconduct, including officers who have been the subject of misconduct claims.

(d) Failed to implement adequate disciplinary policies to deter its police officers from the use of excessive force, improper police procedures and tactics, and falsifying police records.

139. CITY, by its policy making agents, servants, and employees, authorized and or allowed the type of misconduct complained herein to continue.

140. The conduct of the Individual Defendants was consistent with longstanding customs, practices, and usages of police officers employed by Defendant CITY.

141. Upon information and belief, despite knowledge of such *de facto* policies and practices, the supervising and policy making officers and officials of the Police Department of Defendant CITY have not taken steps to terminate these policies and practices, have not disciplined individuals who engage in such practices or otherwise trained police officers with regard to the constitutional and statutory limits on the exercise of its authority, and have, instead, condoned and ratified these customs, usages, and practices through their deliberate indifference to or disregard of the effect of said policies, customs, and practices upon the constitutional rights upon persons within its jurisdiction.

142. As a proximate result of Defendant CITY's actions, Plaintiff was physically injured, disabled, permanently scarred, caused to be greatly humiliated, injured in his person and reputation, caused to incur attorneys' fees, medical expenses, associated legal expenses, and other special damages, and has suffered great pain and mental anguish, all to Plaintiff's damage in a sum to be provided at trial but not less than ONE MILLION DOLLARS (\$1,000,000.00), plus costs and attorney's fees pursuant to Title 42 § 1988.

AS AND FOR A NINTH COUNT
Violations of New York State Constitution
(Against Defendant Officers)

143. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

144. Defendant Officers subjected Plaintiff to the foregoing acts and omissions without due process of law, thereby depriving Plaintiff of rights, privileges, and immunities guaranteed by Article 1, §§ 6 and 12 of the New York State Constitution, including, without limitation, the right to due process and the right to be free from unreasonable searches and seizures.

145. As a proximate result of Defendant Officers' intentional and malicious actions, Plaintiff was greatly humiliated, injured in his reputation, caused to incur attorneys' fees, associated legal expenses, and other special damages, and has suffered great mental anguish, all to Plaintiff's damage in an amount to be provided at trial but no less than ONE MILLION DOLLARS (\$1,000,000.00), plus punitive damages, costs, and attorney's fees.

AS AND FOR A TENTH COUNT
False Arrest/Imprisonment
(Against All Defendants)

146. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

147. Defendants caused Plaintiff to be falsely arrested/imprisoned.

148. Defendants caused Plaintiff to be confined and intended to have Plaintiff confined.

149. Plaintiff was conscious of the confinement, Plaintiff did not consent to the confinement, and the confinement was not otherwise privileged.

150. That, by reason of the false arrest, Plaintiff suffered damages as set forth herein.

151. That, by reason of the foregoing, Plaintiff suffered and continues to suffer irreparable injury and monetary damages, in a sum to be provided at trial but not less than ONE MILLION DOLLARS (\$1,000,000.00), plus punitive damages as to the Individual Defendants and costs.

AS AND FOR AN ELEVENTH COUNT
Malicious Prosecution
(Against All Defendants)

152. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

153. Plaintiff was arraigned and charged with Criminal Trespass in the Third Degree in violation of PL § 140.10(a), Criminal Trespass in the Third Degree in violation of PL § 140.10 (0A), Disorderly Conduct in violation of NY PL § 240.20 (06), and Harassment in the Second Degree in violation of NY PL § 240.26 (03).

154. As a result of the malicious prosecution, Plaintiff suffered substantial financial loss.

155. As a result of the false and unlawful charges, Plaintiff was required to make appearances in Court.

156. Defendants participated in the investigations of allegations against Plaintiff, as well as the criminal prosecution against him.

157. The criminal prosecution commenced despite Defendants' knowledge that Plaintiff did not participate in the alleged crimes and that probable cause for the arrest and initiation of the prosecution did not exist.

158. The criminal prosecution was continued after Defendants knew that they had no probable cause for the original arrest and/or initiation of the prosecution existed.

159. By participating in the arrest and prosecution which they knew lacked probable cause, Defendants acted with malice against Plaintiff.

160. Defendants prosecuted Plaintiff with malice independent of their lack of probable cause.

161. The prosecution of Plaintiff was terminated favorably to him.

162. As a result of Defendants' malicious prosecution, Plaintiff's rights were violated.

163. That, by reason of the foregoing, Plaintiff suffered and continues to suffer irreparable injury and monetary damages, in a sum to be provided at trial but not less than ONE MILLION DOLLARS (\$1,000,000.00), plus punitive damages as to the Individual Defendants and costs.

AS AND FOR A TWELFTH COUNT

**Negligence
(Against All Defendants)**

164. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

165. Defendants had a duty to prevent and cease the unlawful search and seizure, wrongful detainment, false arrest, false imprisonment, and malicious prosecution upon Plaintiff, as well as a duty to hire, to train, to investigate, supervise, and discipline the Individual Defendants and prevent other wrongful acts that were committed against Plaintiff.

166. In actively inflicting and failing to prevent the above stated abuses incurred by Plaintiff, all of the Defendants acted unreasonably, recklessly, and negligently in failing to exercise the slightest amount of due care to secure and protect the civil and constitutional rights of Plaintiff against illegal search and seizure, detained custody, false imprisonment, malicious prosecution, and other due process violations. Said rights are guaranteed to Plaintiff by 42 U.S.C. § 1983 and by the Fourth, Fifth, and Fourteenth Amendments of the U.S. Constitution.

167. The breach of duty by Defendants was a direct and proximate cause of the harm suffered by Plaintiff. Said harm includes psychological harm which continues to this day, monetary expenses, personal humiliation, damage to reputation, and loss of standing in the community.

168. That, by reason of the foregoing, Plaintiff suffered and continues to suffer irreparable injury and monetary damages, in a sum to be provided at trial but not less than ONE MILLION DOLLARS (\$1,000,000.00), plus costs.

AS AND FOR A THIRTEENTH COUNT
Negligent Hiring, Improper Supervision, and Improper Retention
(Against Defendants CITY and NYPD)

169. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously with the same force and effect as if more fully set forth at length herein.

170. Upon information and belief, it was the custom, policy, and practice of Defendants CITY and NYPD to hire certain police officers and supervisors, including the Individual Defendants, without conducting the appropriate background check, investigation, and psychological evaluations.

171. Upon information and belief, it was the custom, policy, and practice of Defendants CITY and NYPD to conduct inadequate investigations of police officers and supervisor candidates as was done with the Individual Defendants.

172. Upon information and belief, it was the custom, policy, and practice of Defendants CITY and NYPD to inadequately supervise the actions and conduct of police officers and supervisors, including the Individual Defendants.

173. Upon information and belief, it was the custom, policy, and practice of Defendants CITY and NYPD to continue to employ police officers and supervisors, including the Individual

Defendants, after it is known that such police officers and supervisors consistently violate the constitutional rights of persons such as Plaintiff.

174. These customs, policies, and practices were the moving force, proximate cause, or affirmative link behind the conduct causing Plaintiff's injuries.

175. Defendants CITY and NYPD are therefore liable for violations of Plaintiff's constitutional rights, as caused by Defendants, as described in more detail in the foregoing paragraphs, and Plaintiff has suffered damages therefrom.

176. As a proximate result of Defendants' customs, policies, and practices for negligent hiring, improper supervision, and improper retention of police officers and supervisors, Plaintiff was greatly humiliated, injured in his reputation, caused to incur attorneys' fees, associated legal expenses, and other special damages, and has suffered great mental anguish, all to Plaintiff's damage, in a sum to be provided at trial but not less than ONE MILLION DOLLARS (\$1,000,000.00), plus costs.

AS AND FOR A FOURTEENTH COUNT
Respondeat Superior
(Against Defendants CITY and NYPD)

177. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously with the same force and effect as if more fully set forth at length herein.

178. At all relevant times, Defendant Officers were employees of Defendants CITY and NYPD and were acting within the scope of their employment.

179. By virtue of Defendant Officers' employment with Defendants CITY and NYPD and their actions within the scope of their employment, Defendants CITY and NYPD are liable for Defendant Officers' actions under the theory of *Respondeat Superior*.

180. As a result of the above-described conduct, Plaintiff was caused to be unlawfully seized, falsely arrested and imprisoned, maliciously prosecuted, placed in substantial fear for his life, mental torment, night terrors and nightmares, depression, fear, loss of enjoyment of life, and other mental, and psychological injuries, damage to his reputation, other special damages, has suffered great mental anguish, and has incurred and will continue to incur expenses for medical and psychological treatment, therapy, and counseling, all to Plaintiff's damage, in a sum to be provided at trial but not less than ONE MILLION DOLLARS (\$1,000,000.00), plus costs.

AS AND FOR A FIFTEENTH COUNT

Assault and Battery

(Against Defendants ESPINAL, NAZARY, BERMEO, and DOES #11-20)

181. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

182. Defendants ESPINAL, NAZARY, BERMEO, and DOES #11-20, without just cause, willfully and maliciously used physical force against Plaintiff, causing him to sustain severe and serious injuries.

183. Defendants ESPINAL, NAZARY, BERMEO, and DOES #11-20 committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

184. As a proximate result of Defendants ESPINAL, NAZARY, BERMEO, and DOES #11-20's intentional and malicious actions, Plaintiff was greatly humiliated, injured in his reputation, caused to incur attorneys' fees, associated legal expenses and other special damages, and has suffered great mental anguish, all to Plaintiff's damage in an amount to be provided at trial

but no less than ONE MILLION DOLLARS (\$1,000,000.00), plus punitive damages as to the Individual Defendants and costs.

AS AND FOR A SIXTEENTH COUNT
Intentional/Negligent Infliction of Emotional Distress
(Against Defendant Officers)

185. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the Verified Complaint marked and numbered previously and/or herein with the same force and effect as if more fully set forth at length below.

186. Defendant Officers, through the foregoing acts, did commit extreme and outrageous conduct and thereby intentionally and/or recklessly caused Plaintiff to experience severe mental and emotional distress, pain, suffering, and damage to name and reputation.

187. All of these acts were performed without any negligence on the part of Plaintiff and were the proximate cause of injuries to Plaintiff.

188. Defendant Officers committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

189. As a proximate result of Defendant Officers' intentional and malicious actions, Plaintiff was greatly humiliated, injured in his reputation, caused to incur attorneys' fees, associated legal expenses and other special damages, and has suffered great mental anguish, all to Plaintiff's damage in an amount to be provided at trial but no less than ONE MILLION DOLLARS (\$1,000,000.00), plus punitive damages as to the Individual Defendants and costs.

WHEREFORE, Plaintiff JONATHAN WOHL respectfully requests judgment against Defendants NEW YORK CITY, NEW YORK CITY POLICE DEPARTMENT, NEW YORK CITY POLICE OFFICER SHAUN ENRIGHT, in his individual and official capacities, NEW YORK CITY POLICE OFFICER ARISLEYDA TAVERANUNEZ, in her individual and official

capacities, NEW YORK CITY POLICE SERGEANT WILLIAM J. JOHNSON, in his individual and official capacities, NEW YORK CITY POLICE OFFICER MICHAEL PECK, in his individual and official capacities, NEW YORK CITY POLICE SERGEANT CHO, in his individual and official capacities, NEW YORK CITY POLICE OFFICER ADELSON ESPINAL, in his individual and official capacities, NEW YORK CITY POLICE OFFICER NAZIR NAZARY, in his individual and official capacities, NEW YORK CITY POLICE SERGEANT DANNY BERMEJO, in his individual and official capacities, NEW YORK CITY POLICE OFFICER JOHN DOES #1-10 (fictitiously named), in their individual and official capacities, and NEW YORK CITY POLICE OFFICER JOHN DOES #11-20 (fictitiously named), in their individual and official capacities, in an amount that exceeds the jurisdictional limits of all lower Courts, but no less than One Million Dollars on each of the Counts, plus punitive damages, attorneys' fees, costs, disbursements, and any such other and further relief as the Court deems just and proper.

Dated: Garden City, New York
December 6, 2023

Respectfully Submitted,

THE RUSSELL FRIEDMAN LAW GROUP, LLP
Attorneys for Plaintiff, Jonathan Wohl

By: /s/Allen Lim
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Garden City, New York 11530
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ATTORNEY VERIFICATION

ALLEN LIM, an attorney duly admitted to the practice of law in the Courts of the State of New York affirms the following to be true under the penalties of perjury:

I am the attorney for Plaintiff, JONATHAN WOHL, in the within action and I have read the foregoing Verified Complaint and know the contents thereof and the same is true to the knowledge of the affirmant, except as to the matters stated to be alleged upon information and belief and as to those matters I believe it to be true.

Affirmant further states that the reason why Plaintiff does not make this verification is that said Plaintiff reside in a County other than where affirmant has his office. That the grounds of affirmant's belief as to all matters not therein stated to be alleged upon his knowledge are investigations and information received by affirmant in the course of his duties as an attorney for said Plaintiff.

Dated: Garden City, New York
December 6, 2023

/s/Allen Lim
ALLEN LIM